

Dr Sarah Gilmartin

s.gilmartin@lancaster.ac.uk

Employers' Liability (or relationships akin to employment)

Non-Delegable Duties and Vicarious
Liability

(Independent Contractors, Dual VL and
Summary)

Part 3/4

Week 18



Vicarious Liability – Independent Contractors

- ❖ Contract of service = employee
- ❖ Contract for services = independent contractor

Barclays Bank Plc v Various Claimants [2020] UKSC 13

- ‘Two elements have to be shown before one person can be made vicariously liable for the torts committed by another. The first is a relationship between the two persons which makes it proper for the law to make the one pay for the fault of the other ... The second is the connection between that relationship and the tortfeasor's wrongdoing.’ *per Lady Hale* [1]
- ‘in business on his own account’ [28]

Nassir Kafagi v Jbw Group Ltd [2018] EWCA Civ 1157

- Contract one for services, but no vicarious liability

Ready Mixed Concrete (South East) Ltd v Minister of Pensions and National Insurance [1968] 2 QB 497

- Entrepreneur Test

JXJ v The Province of Great Britain of the Institute of Brothers of the Christian Schools [2020] EWHC 1914

- applied *Barclays* – different decision to *Various Claimants*.

Vicarious Liability – Dual vicarious liability

Via Systems (Tyneside) Ltd v Thermal Transfer (Northern) Ltd and Others [2005] EWCA Civ 1151

1. **The Control Test:** ‘If, on the facts of a particular case, the core question is who was entitled, and in theory obliged, to control the employee's relevant negligent act so as to prevent it, there will be some cases in which the sensible answer would be each of two “employers”. The present is such a case.’ *per May LJ* [79]
2. **The Business Integration Test:** ‘what one is looking for is a situation where the employee in question, at any rate for relevant purposes, is so much a part of the work, business or organisation of both employers that it is just to make both employers answer for his negligence.’ *per Rix LJ* [79]

See also: *Mersey Docks and Harbour Board v Coggins and Griffith (Liverpool) Ltd* [1947] AC 1

Vicarious Liability – How the ‘New’ Tests have been applied (some additional cases)...



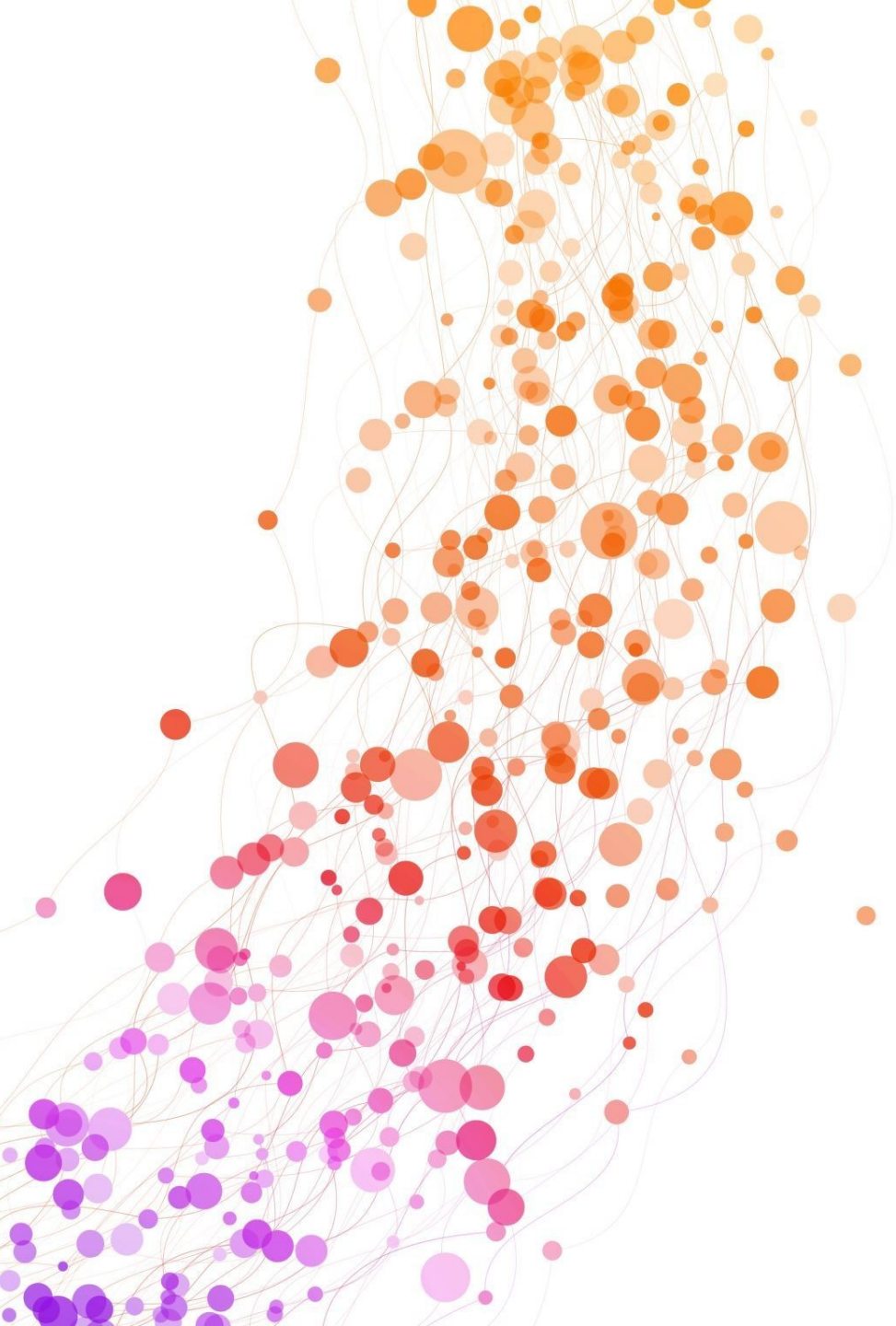
- **TVZ v Manchester City Football Club Ltd [2022] EWHC 7 (QB)** followed *Blackpool FC Ltd* (below) – sexual abuse by football coach – not employed by club and not akin to employment – no vicarious liability applying *Various Claimants*, *Cox*, and *Barclays*.
- **Blackpool Football Club Ltd v DSN [2021] EWCA Civ 1352** – Sexual abuse – club originally found vicariously liable – appeal allowed – no vicarious liability as did not satisfy the test in *Various Claimants* – not a relationship akin to employment and ‘*there was a complete absence even of a vestigial degree of control*’ by the club over the tortfeasor.

Vicarious Liability – How the ‘New’ Tests have been applied (some additional cases)...

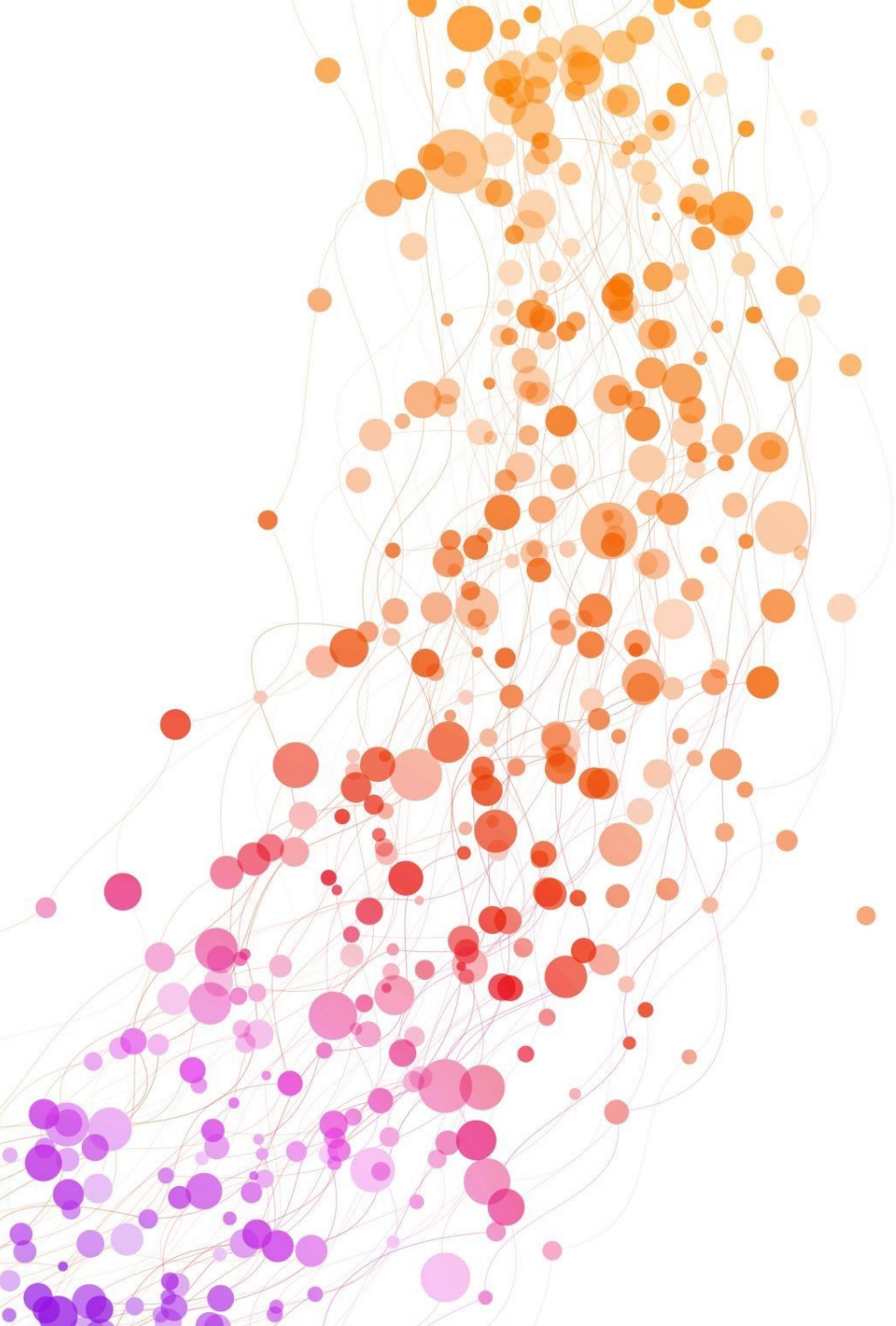


- **Hughes v Rattan [2022] EWCA Civ 107** – dental practice – self-employed dentists within the practice providing negligent treatment – Question of NDD and VL – Was dentist ‘under a non-delegable duty of care to the claimant in respect of the treatment she received at the Practice[?] She was a patient of his Practice, not just in layman's language but as a matter of law.’ **Bean LJ [68]** – **Dentist liable under NDD.**
 - **N.B.** ‘Although the relationship between the defendant and the Associate Dentists was closer to the “akin to employment” line than that between Barclays and Dr Bates, I consider that the Barclays test for vicarious liability is not met in the present case.’ **Bean LJ [88]** – **Dentist NOT liable under VL.**
- **MXV v A Secondary School [2023] EWCA Civ 996 (see slide at end of Part 2 as well re: Barry connection)** – work experience student convicted subsequently of sexual activity with a child he met during his work experience placement – assault and battery took place post-work experience – was the school vicariously liable for the torts? No. **Appeal issues:**
 - The elements of the tort of intentional infliction of harm were present during the work experience (*Wilkinson v Downton*); **AND**
 - The relationship between T and D was one akin to employment; **HOWEVER**
 - There was not a sufficient close connection between the grooming and the employment - **D not liable for grooming under tort in *Wilkinson v Downton*.**



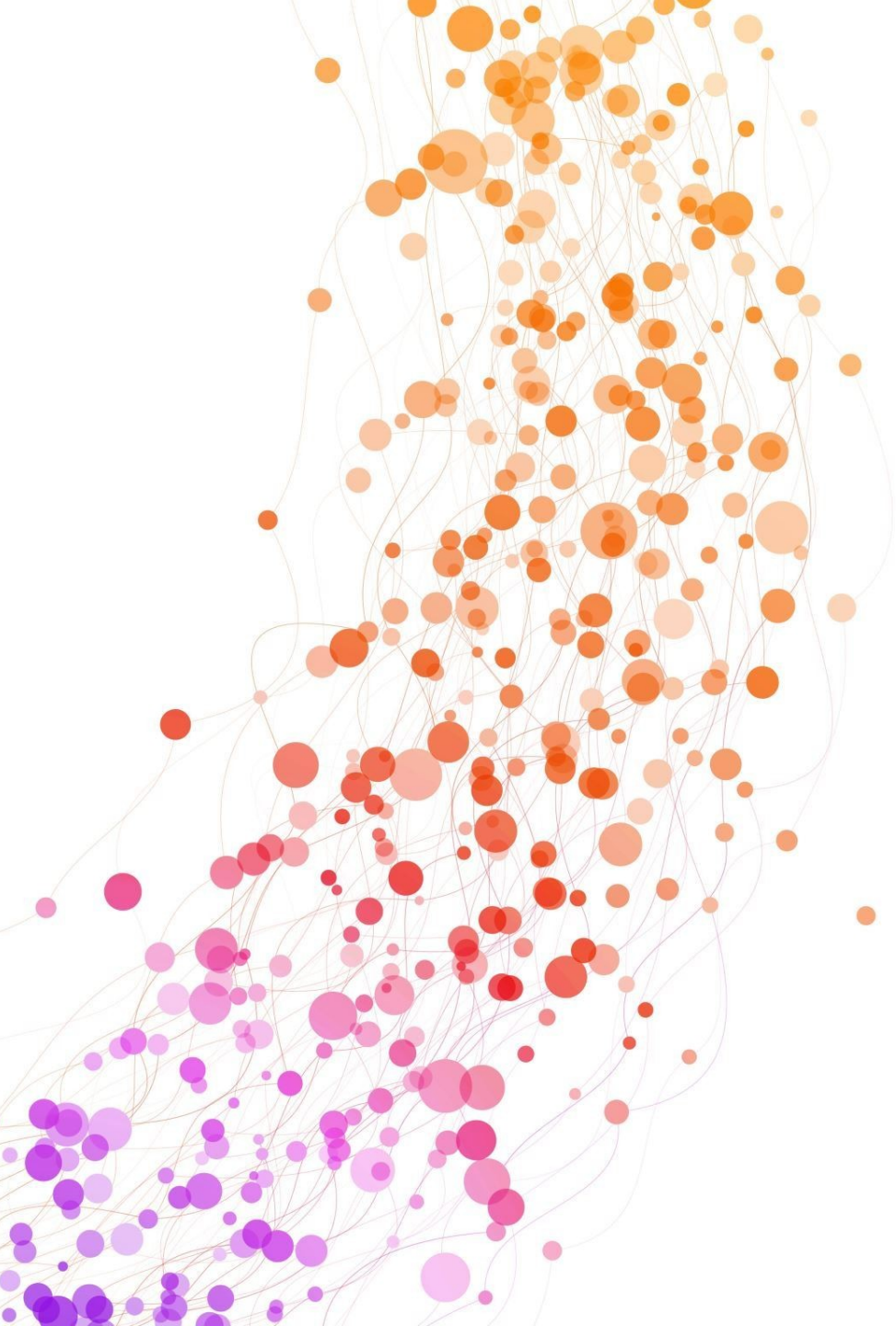


Revision/Consolidation of Knowledge



A reminder of the tests: NDD

- Consider D's common law and statutory duties e.g. provision of safe systems of work, competent employees, and adequate material.
- *Woodland Test:*
 - 1) C is vulnerable
 - 2) Prior relationship between C and D (positive duty)
 - 3) C has no control over how D chooses to control the obligation (whether personally, through employees, or through third parties)
 - 4) D has delegated to a third party something integral to their positive duty of care toward C
 - 5) Third party is negligent



A reminder of the tests: VL 1/2

- 3 parties – T, D and C
- There must be a tort for D to be held vicariously liable
- Salmond Test = In the course of employment (authorised or unauthorised mode)
- Close Connection Test:
 - is the tort so closely connected with T's employment that it is fair and just to hold D vicariously liable?
 - is the tort done in furtherance of D's business?

A reminder of the tests:

VL 2/2

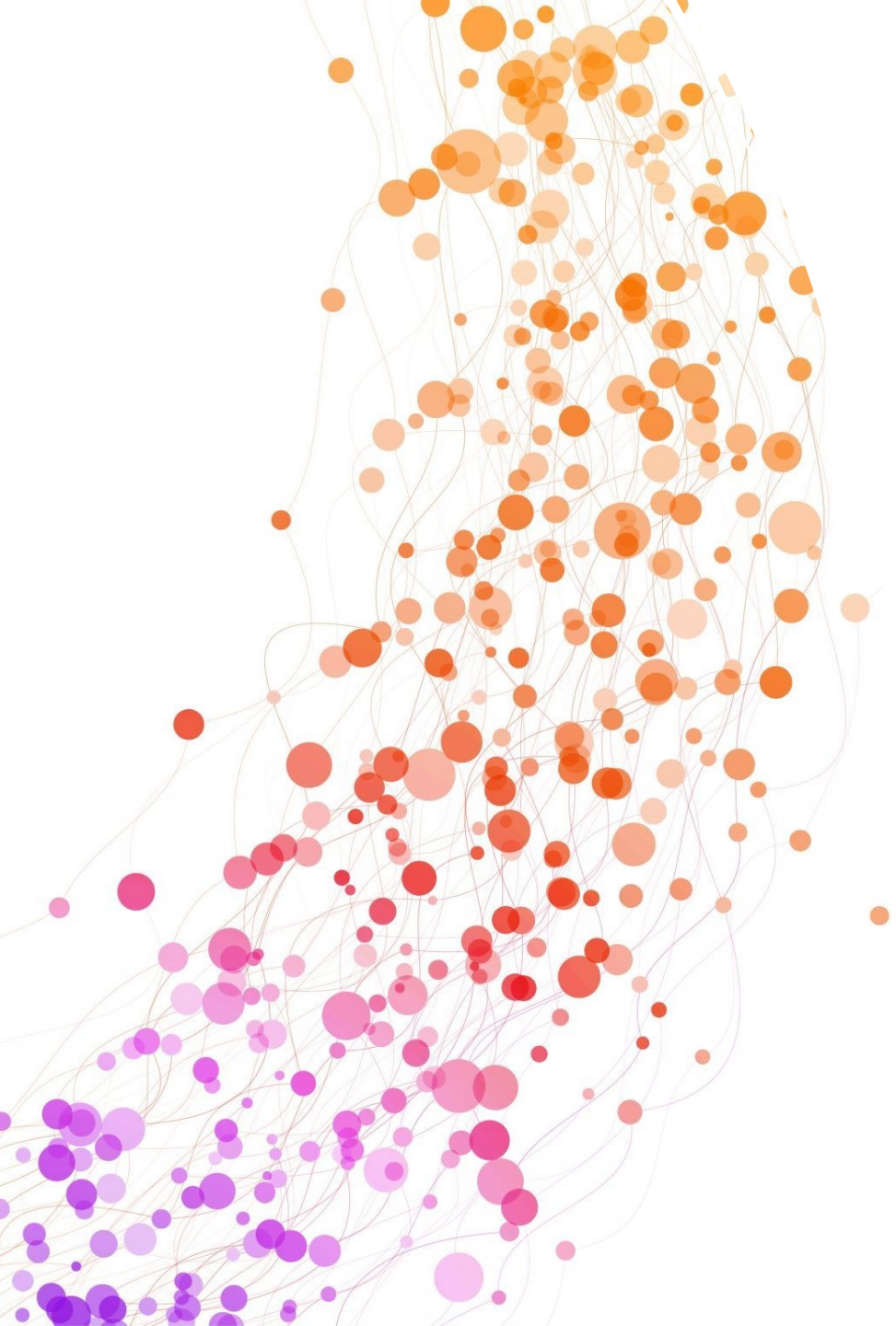
- *Various Claimants* Test in detail:

- 1) D is more likely to have the means to compensate C than the immediate wrongdoer, T;
- 2) The tort has been committed as a result of activity being taken by the employee on behalf of D (who will usually be an employer);
- 3) T's activity is likely to be part of the business activity of D;
- 4) D, by entrusting T to carry on the activity will have created the risk of the tort committed by T; and
- 5) T, to a greater or lesser degree, has been under the control of D.

- Independent contractor test and dual vicarious liability tests:

- In business on his own account
- The Entrepreneur Test

- Control
- Integration



Non-Delegable Duties vs Vicarious Liability

1/3

'Juridically, the two routes are very different. In the case of vicarious liability, the human person must commit a tort.

The liability of the corporate person is strict once a sufficient connection between the tort and the organisation is established. In the case of the non-delegable duty, there is no need to find an individual tort. The tort is personal to the corporate entity, and requires fault. This tends to mean, in practice, that it relates to a managerial or organisational failure of some kind. In employer's liability this can take the form of a failure, for example, to provide a safe working environment.'

Simon Deakin 'Organisational Torts: Vicarious Liability Versus Non-Delegable Duties' (2018) Vol 77(1) Cambridge Law Journal 15, 16

Non-Delegable Duties VS Vicarious Liability

2/3

Question

There is a liquid spillage on the floor at Boss' factory. Boss tells an employee, Lackey, to clean up the spillage. Lackey fails to do so for no good reason. Another employee, Unlucky, slips on the liquid and breaks his leg.

N McBride and R Bagshaw, *Tort Law*, (6th edn, Pearson 2018)

Non-delegable duty or vicarious liability?



Non-Delegable Duties vs Vicarious Liability 3/3

Personal Liability (NDD)	Vicarious Liability
Breach of duty (common/statutory/contractual)	Employee's breach
Tort of employer not necessary (e.g. contractor)	Tort of employee
Positive Duty (special relationship)	Negative Duty (common duty of care)
Claimant must prove breach	Claimant must prove breach
Cannot delegate away personal liability (<i>Wilson and Clyde Coal Co Ltd v English</i> [1938] A.C. 57)	Employer liable where employee tort arises 'in the course of employment' meaning 'closely connected with employment' (<i>Lister v Hesley Hall</i> [2001] 2 WLR 1311)
2 parties (Master and Claimant) or 3 parties	3 parties only (Master, Servant, Claimant)

DEFENCES & REMEDIES

❖ Causation and Remoteness

❖ D has taken all reasonable steps (the best defence is no defence) - NDD

❖ C's contributory negligence

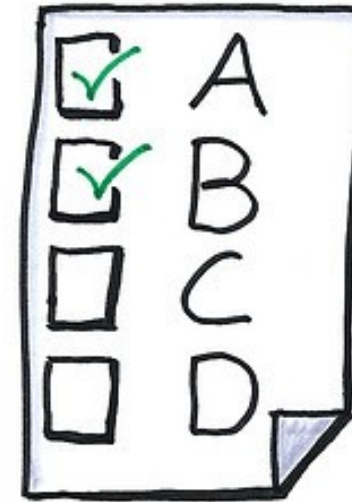
❖ Damages

❖ *Volenti non fit injuria*

❖ No close connection between T's actions and D's activities (*JXJ v Institute of Brothers and Trustees of the Barry Congregation of Jehovah's Witnesses v BXB*)

MCQ Practice

- Click this link: [MCQ Employers' Liability Part 3](#)
- Or scan QR code:



Dr Sarah Gilmartin

s.gilmartin@lancaster.ac.uk

Employers' Liability (or relationships akin to employment)

Non-Delegable Duties and Vicarious
Liability

(Independent Contractors, Dual VL and
Summary)

Part 3/4

Week 18

